

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: **1154/16**
Date of Purchase:

JOSEPH KELLER,

SUMMONS

Plaintiff,

Plaintiff designates
KINGS County
as place of trial

-against-

THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT
P.O MICHAEL SALAS, RASHID ROBINSON
and TYRONE DENNIS JOHNSON,

The basis of venue is:
Situs of the Occurrence

Defendants.

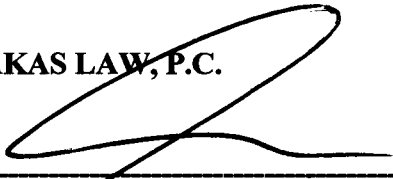
TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorneys within 20 days after the service of this summons exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
January 29, 2015

The nature of this action is for injuries sustained as a result of the defendants' negligence.
The relief sought is monetary damages.

LIAKAS LAW, P.C.


STEPHEN J. LIAKAS, ESQ.
65 Broadway, Suite 1101
New York, N.Y. 10006
(212) 937-7765

FILED
KINGS COUNTY CLERK
2016 FEB - 1 AM 10:45

Failure to respond, a judgment will be against you, by default and interest February 4, 2015.

Defendants:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT
53-15 58th Street
Woodside, NY 11277

MICHAEL SALAS
c/o NYPD

RASHID ROBINSON
133 W Windsor St
Reading, PA 19601

TYRONE DENNIS JOHNSON
133 W Windsor St
Reading, PA 19601

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.:

=====X
JOSEPH KELLER,

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT and
P.O. MICHAEL SALAS, RASHID ROBINSON
and TYRONE DENNIS JOHNSON

Defendants.
=====X

Plaintiff, by his attorneys, LIAKAS LAW, P.C., complaining of the defendants herein, respectfully
show to this court and alleges as follows:

1. The plaintiff, JOSEPH KELLER, at all times herein mentioned was and still is a resident of the County of QUEENS, City and State of New York.
2. That at all of the times hereinafter mentioned, and upon information and belief, the defendant, THE CITY OF NEW YORK, was a municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.
3. That on or about February 10, 2015, a Notice of Claim was served on the defendant, THE CITY OF NEW YORK, prior to the commencement of this action.
4. That on or about February 10, 2015, JOSEPH KELLER, herein duly presented in writing to the defendant, THE CITY OF NEW YORK, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.
5. That more than 30 days have elapsed since the said Notice of Claim was served upon the defendant and the defendant, THE CITY OF NEW YORK, has failed and refused to make an adjustment of any claim herein set forth.
6. That at all of the times hereinafter mentioned, and upon information and belief, the

defendant, THE NEW YORK CITY POLICE DEPARTMENT, was a municipal corporation duly organized and existing under and by virtue of the Laws of the State of New York.

7. That on or about February 10, 2015, a Notice of Claim was served on the defendant, THE NEW YORK CITY POLICE DEPARTMENT, prior to the commencement of this action.
8. That on or about February 10, 2015, JOSEPH KELLER, herein duly presented in writing to the defendant, THE NEW YORK CITY POLICE DEPARTMENT, the claim for damages herein set forth and upon which this action is founded and that said claim was presented for adjustment.
9. That more than 30 days have elapsed since the said Notice of Claim was served upon the defendant and the defendant, THE NEW YORK CITY POLICE DEPARTMENT, has failed and refused to make an adjustment of any claim herein set forth.
10. The defendant, MICHAEL SALAS, at all times herein mentioned was and still is a resident of the County of KINGS, City and State of New York.
11. A hearing pursuant to §50(h) of the General Municipal Law was held or waived.
12. That all conditions precedent to the bringing of this action have been complied with.
13. That this action was commenced within one year and ninety (90) days after the accrual of the cause of action herein.
14. On or about February 4, 2015, defendant, THE CITY OF NEW YORK, was the owner of a certain automobile with plate number 8843-12 as issued by the State of New York.
15. On or about February 4, 2015, defendant, THE CITY OF NEW YORK, was the lessee of a certain automobile with plate number 8843-12 as issued by the State of New York.
16. On or about February 4, 2015, defendant, THE CITY OF NEW YORK, was the lessor of a certain automobile with plate number 8843-12 as issued by the State of New York.
17. On or about February 4, 2015, defendant, THE CITY OF NEW YORK, was the operator

- of a certain automobile with plate number 8843-12 as issued by the State of New York.
18. On or about February 4, 2015, defendant, THE CITY OF NEW YORK, maintained a certain automobile with plate number 8843-12 as issued by the State of New York.
 19. On or about February 4, 2015, defendant, THE CITY OF NEW YORK, controlled a certain automobile with plate number 8843-12 as issued by the State of New York.
 20. On or about February 4, 2015, defendant, THE CITY OF NEW YORK, repaired a certain automobile with plate number 8843-12 as issued by the State of New York.
 21. On or about February 4, 2015, defendant, P.O. MICHAEL SALAS, operated, maintained, and/or controlled a certain automobile with plate number 8843-12 as issued by the State of New York within the scope of his employment by, THE CITY OF NEW YORK.
 22. On or about February 4, 2015, defendant, THE NEW YORK CITY POLICE DEPARTMENT, was the owner of a certain automobile with plate number 8843-12 as issued by the State of New York.
 23. On or about February 4, 2015, defendant, THE NEW YORK CITY POLICE DEPARTMENT, was the lessee of a certain automobile with plate number 8843-12 as issued by the State of New York.
 24. On or about February 4, 2015, defendant, THE NEW YORK CITY POLICE DEPARTMENT, was the lessor of a certain automobile with plate number 8843-12 as issued by the State of New York.
 25. On or about February 4, 2015, defendant, THE NEW YORK CITY POLICE DEPARTMENT, was the operator of a certain automobile with plate number 8843-12 as issued by the State of New York.
 26. On or about February 4, 2015, defendant, THE NEW YORK CITY POLICE DEPARTMENT, maintained a certain automobile with plate number 8843-12 as issued by the State of New York.

27. On or about February 4, 2015, defendant, THE NEW YORK CITY POLICE DEPARTMENT, controlled a certain automobile with plate number 8843-12 as issued by the State of New York.
28. On or about February 4, 2015, defendant, THE NEW YORK CITY POLICE DEPARTMENT, repaired a certain automobile with plate number 8843-12 as issued by the State of New York.
29. On or about February 4, 2015, defendant, P.O. MICHAEL SALAS, operated, maintained, and/or controlled a certain automobile with plate number 8843-12 as issued by the State of New York within the scope of his employment by, THE NEW YORK CITY POLICE DEPARTMENT.
30. On or about February 4, 2015, defendant, P.O. MICHAEL SALAS, was the owner of a certain automobile with plate number 8843-12 as issued by the State of New York.
31. On or about February 4, 2015, defendant, P.O. MICHAEL SALAS, was the lessee of a certain automobile with plate number 8843-12 as issued by the State of New York.
32. On or about February 4, 2015, defendant, P.O. MICHAEL SALAS, was the lessor of a certain automobile with plate number 8843-12 as issued by the State of New York.
33. On or about February 4, 2015, defendant, P.O. MICHAEL SALAS, was the operator of a certain automobile with plate number 8843-12 as issued by the State of New York.
34. On or about February 4, 2015, defendant, P.O. MICHAEL SALAS, maintained a certain automobile with plate number 8843-12 as issued by the State of New York.
35. On or about February 4, 2015, defendant, P.O. MICHAEL SALAS, controlled a certain automobile with plate number 8843-12 as issued by the State of New York.
36. On or about February 4, 2015, defendant, P.O. MICHAEL SALAS, repaired a certain automobile with plate number 8843-12 as issued by the State of New York.

37. On or about February 4, 2015, defendant, P.O. MICHAEL SALAS, operated, maintained, and/or controlled a certain automobile with plate number 8843-12 as issued by the State of New York with the consent of its owner.
38. On or about February 4, 2015, defendant, P.O. MICHAEL SALAS, operated, maintained, and/or controlled a certain automobile with plate number 8843-12 as issued by the State of New York with the consent of its owner, THE CITY OF NEW YORK.
39. On or about February 4, 2015, defendant, P.O. MICHAEL SALAS, operated, maintained, and/or controlled a certain automobile with plate number 8843-12 as issued by the State of New York with the consent of its owner, THE NEW YORK CITY POLICE DEPARTMENT.
40. On or about February 4, 2015, defendant, RASHID ROBINSON, was the owner of a certain automobile with plate number 31273145 as issued by the State of Pennsylvania.
41. On or about February 4, 2015, defendant, RASHID ROBINSON, was the lessee of a certain automobile with plate number 31273145 as issued by the State of Pennsylvania.
42. On or about February 4, 2015, defendant, RASHID ROBINSON, was the lessor of a certain automobile with plate number 31273145 as issued by the State of Pennsylvania.
43. On or about February 4, 2015, defendant, RASHID ROBINSON, was the operator of a certain automobile with plate number 31273145 as issued by the State of Pennsylvania.
44. On or about February 4, 2015, defendant, RASHID ROBINSON, maintained a certain automobile with plate number 31273145 as issued by the State of Pennsylvania.
45. On or about February 4, 2015, defendant, RASHID ROBINSON, controlled a certain automobile with plate number 31273145 as issued by the State of Pennsylvania.
46. On or about February 4, 2015, defendant, RASHID ROBINSON, repaired a certain automobile with plate number 31273145 as issued by the State of Pennsylvania.

47. On or about February 4, 2015, defendant, RASHID ROBINSON, operated, maintained, and/or controlled a certain automobile with plate number 31273145 as issued by the State of Pennsylvania with the consent of its owner.
48. On or about February 4, 2015, defendant, TYRONE DENNIS JOHNSON, was the owner of a certain automobile with plate number RRIB56 as issued by the Pennsylvania.
49. On or about February 4, 2015, defendant, TYRONE DENNIS JOHNSON, was the lessee of a certain automobile with plate number RRIB56 as issued by the State of Pennsylvania.
50. On or about February 4, 2015, defendant, TYRONE DENNIS JOHNSON, was the lessor of a certain automobile with plate number RRIB56 as issued by the State of Pennsylvania.
51. On or about February 4, 2015, defendant, TYRONE DENNIS JOHNSON, was the operator of a certain automobile with plate number RRIB56 as issued by the State of Pennsylvania.
52. On or about February 4, 2015, defendant, TYRONE DENNIS JOHNSON, maintained a certain automobile with plate number RRIB56 as issued by the State of Pennsylvania.
53. On or about February 4, 2015, defendant, TYRONE DENNIS JOHNSON, controlled a certain automobile with plate number RRIB56 as issued by the State of Pennsylvania.
54. On or about February 4, 2015, defendant, TYRONE DENNIS JOHNSON, repaired a certain automobile with plate number RRIB56 as issued by the State of Pennsylvania.
55. On or about February 4, 2015, defendant, TYRONE DENNIS JOHNSON, operated, maintained, and/or controlled a certain automobile with plate number RRIB56 as issued by the State of Pennsylvania with the consent of its owner.
56. That at all times hereinafter mentioned the roadway known as Ralph Avenue at or near the intersection of St. Marks Avenue, in the County of KINGS, City and State of New York.
57. That on or about February 4, 2015, at the aforesaid location, the aforesaid motor vehicles

came into contact with each other.

58. That the aforesaid accident and injuries resulting therefrom were due solely and wholly as a result of the careless and negligent manner in which the defendants owned, operated, maintained and controlled their motor vehicle without this plaintiff in any way contributing thereto.
59. That by reason of the foregoing and the negligence of the defendants, the plaintiff, JOSEPH KELLER, was severely injured, bruised and wounded, suffered, still suffers and will continue to suffer for some time physical pain and bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.
60. That by reason of the foregoing, the plaintiff, JOSEPH KELLER, was compelled to and did necessarily require medical aid and attention, and did necessarily pay and become liable therefor for medicines and upon information and belief, the plaintiff, JOSEPH KELLER, will necessarily incur similar expenses.
61. That by reason of the foregoing, the plaintiff, JOSEPH KELLER, has been unable to attend to his usual occupation in the manner required.
62. The aforesaid accident was due solely as a result of the defendants' negligence and carelessness and operation of said vehicle.
63. By reason of the foregoing, the plaintiff was caused to suffer severe and serious personal injuries to mind and body, and further, that the plaintiff was subjected to great physical and mental anguish.
64. That by reason of the wrongful, negligent and unlawful actions of the defendant, as aforesaid, the plaintiff, JOSEPH KELLER, sustained serious injuries as defined in Section 5102(d) of the Insurance Law of The State of New York, and has sustained economic loss greater than basic economic loss as defined in Section 5102 of the said Insurance Law.

65. That Plaintiff is a 'covered person' as defined by section 5102(j) of the Insurance Law of the State of New York.
66. That Plaintiff is entitled to recover for non-economic loss and for such economic losses as are not included within the definition of 'basic economic loss' as set forth in section 5102(a) of the Insurance Law of the State of New York.
67. That Plaintiff is entitled to recovery for non-economic loss and for all economic losses sustained.
68. That one or more of the provisions of §1602 of the Civil Practice Law and Rules do apply to the within action.
69. That pursuant to CPLR Section 1602(2) (iv), defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that Defendants owed Plaintiff a non-delegable duty of care.
70. That pursuant to CPLR Section 1602(7) defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that Defendants acted with reckless disregard for the safety of others.
71. That pursuant to CPLR Section 1602(6), defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that Defendants should be held liable by reason of Defendants use, ownership or operation of a motor vehicle.
72. That pursuant to CPLR Section 1602(2) (iv), the defendant owner is jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of the CPLR Section 1601, by reason of the fact that

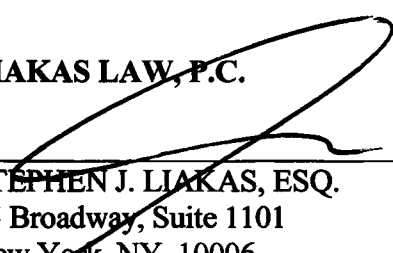
said is vicariously liable for the negligent acts and omissions of the defendant operator of said vehicle.

73. That by reason of the foregoing, Plaintiff, JOSEPH KELLER, was damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon trial of this action.

WHEREFORE, Plaintiff demand that the following judgments in favor of the Plaintiff, JOSEPH KELLER, awarding damages against the defendants for an amount which exceeds the jurisdictional limits of all other Courts which would otherwise have jurisdiction herein, in an amount to be determined upon trial of this action, together with costs and disbursements of this action, and with interest from the date of the accident;

Dated: New York, New York
January 29, 2016

LIAKAS LAW, P.C.



STEPHEN J. LIAKAS, ESQ.
65 Broadway, Suite 1101
New York, NY 10006
(212) 937-7765

[illegible]

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for the plaintiff in the within action; I have read the foregoing SUMMONS AND COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

**Dated: New York, New York
January 29, 2016**

STEPHEN J. LIAKAS, ESQ.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

JOSEPH KELLER,**Plaintiff,****-against-****THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O.
MICHAEL SALAS, RASHID ROBINSON and TYRONE DENNIS JOHNSON,****Defendants.**

LIAKAS LAW, P.C.
65 Broadway, Suite 1101
New York, New York 10006
212.937.7765

Summons and Verified Complaint

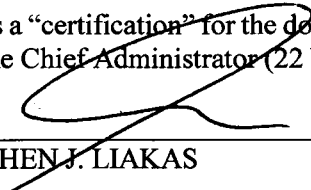
STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

STEPHEN J. LIAKAS, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: New York, New York

January 29, 2016



STEPHEN J. LIAKAS

PLEASE TAKE NOTICE

() that the within is a (certified) true copy of a Notice of entered in the Office of the clerk of the within Entry named Court on

() that an Order of which the within is a true copy will be presented for
Notice of settlement to the Hon. one of the Judges of the Settlement within named Court,
on , at

LIAKAS LAW, P.C.
65 Broadway, Suite 1101
New York, New York 10006
212.937.7765

AFFIDAVIT OF SERVICE

State of New York

County of Kings

Supreme Court

Index Number: 1154/2016

Date Filed: _____

Plaintiff:

Joseph Keller

vs.

Defendant:

The City of New York, The New York City Police Department P.O. Michael Salas, Rashid Robinson and Tyrone Dennis Johnson

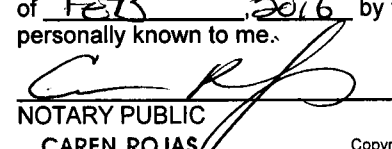
For:

Liakas Law, P.C.
65 Broadway
Suite 1101
New York, NY 10006Received these papers to be served on **The City Of New York, 100 Church Street, New York, NY 10007.**I, Orelbi Rodriguez, being duly sworn, depose and say that on the **9th day of February, 2016 at 3:40 pm, I:**served a **CORPORATION** by delivering a true copy of the **Summons and Verified Complaint** with the date and hour of service endorsed thereon by me, to: **Betty Mazyck as Clerk for The City Of New York**, at the address of: **100 Church Street, New York, NY 10007**, and informed said person of the contents therein, in compliance with state statutes.

Said documents were conformed with index number and date of filing endorsed thereon.

Military Status: Based upon inquiry of party served, Defendant is not in the military service of the United States of America.**Description of Person Served:** Age: 50, Sex: F, Race/Skin Color: Black, Height: 5'4", Weight: 170, Hair: Salt & Pepper, Glasses: Y

I certify that I am over the age of 18, have no interest in the above action, and am a Certified Process Server, good standing, in the judicial circuit in which the process was served.

FILED
KINGS COUNTY CLERK
2016 FEB 17 PM 2:19Subscribed and Sworn to before me on the 11 day
of FEB, 2016, by the affiant who is
personally known to me.
NOTARY PUBLIC
CAREN ROJAS
Orelbi Rodriguez
2020614-DCA

Our Job Serial Number: MLR-2016004545

NOTARY PUBLIC-STATE OF NEW YORK

No. 01RO6333557

Qualified in Bronx County

My Commission Expires November 23, 2019

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AFFIDAVIT OF SERVICE

State of New York

County of Kings

Supreme Court

Index Number: 1154/2016

Date Filed: _____

Plaintiff:

Joseph Keller

vs.

Defendant:

The City of New York, The New York City Police Department P.O. Michael Salas, Rashid Robinson and Tyrone Dennis Johnson

For:

Liakas Law, P.C.

65 Broadway

Suite 1101

New York, NY 10006

Received these papers to be served on **The New York City Police Department, 100 Church Street, New York, NY 10007.**I, Jasmine Henry, being duly sworn, depose and say that on the **16th day of February, 2016 at 4:10 pm, I:**served a **CORPORATION** by delivering a true copy of the **Summons and Verified Complaint** with the date and hour of service endorsed thereon by me, to: **Jerry Bradshaw as Unit Chief for The New York City Police Department**, at the address of: **100 Church Street, New York, NY 10007**, and informed said person of the contents therein, in compliance with state statutes.

Said documents were conformed with index number and date of filing endorsed thereon.

Military Status: Based upon inquiry of party served, Defendant is not in the military service of the United States America.**Description of Person Served:** Age: 55, Sex: M, Race/Skin Color: Black, Height: 5'8", Weight: 150, Hair: Black, Glasses: Y

I certify that I am over the age of 18, have no interest in the above action, and am a Certified Process Server, in good standing, in the judicial circuit in which the process was served.

Subscribed and Sworn to before me on the 19 day of FEB, 2016 by the affiant who is personally known to me.

NOTARY PUBLIC

CAREN ROJAS

NOTARY PUBLIC-STATE OF NEW YORK

No. 01RO6333557

Qualified in Bronx County

My Commission Expires November 23, 2019


 Jasmine Henry
 1415506

Our Job Serial Number: MLR-2016005108

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2016 FEB 23 PM 2:32

 FILED
 KINGS COUNTY CLERK
 2016 FEB 23 PM 2:32
 CUL

AFFIDAVIT OF SERVICE

State of New York

County of Kings

Supreme Court

Index Number: 1154/2016

Date Filed: _____

Plaintiff:

Joseph Keller

vs.

Defendant:

The City of New York, The New York City Police Department P.O. Michael Salas, Rashid Robinson and Tyrone Dennis Johnson

For:

Liakas Law, P.C.

65 Broadway

Suite 1101

New York, NY 10006

Received these papers to be served on **Michael Salas c/o The New York City Police Department, 518 Metropolitan Avenue, Brooklyn, NY 11211.**

I, Antonio Hernandez, being duly sworn, depose and say that on the 19th day of February, 2016 at 12:32 pm, I:

served a **SUITABLE AGE PERSON** by delivering and leaving a true copy of the **Summons and Verified Complaint with Myers as Desk Sargeant at 518 Metropolitan Avenue, Brooklyn, NY 11211**, the said premises being the respondent's place of Work within the State of New York. Deponent completed service by mailing a true copy of the **Summons and Verified Complaint** in a postpaid envelope addressed to: **518 Metropolitan Avenue, Brooklyn, NY 11211** and bearing the words "Personal & Confidential" by First Class Mail on **2/19/2016** and placed in an official depository of the U.S.P.S. in the State of New York.

Said documents were conformed with index number and date of filing endorsed thereon.

Military Status: Based upon inquiry of party served, Defendant is not in the military service of the United States of America.

Description of Person Served: Age: 40, Sex: M, Race/Skin Color: White, Height: 6'0", Weight: 150, Hair: Blonde, Glasses: N

I certify that I am over the age of 18, have no interest in the above action, and am a Certified Process Server, in good standing, in the judicial circuit in which the process was served.

Subscribed and Sworn to before me on the 11 day
of MARCH, 2016, by the affiant who is
personally known to me.

NOTARY PUBLIC

CAREN ROJAS

Antonio Hernandez
2016262-DCA

Serial Number: MLR-2016005344

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NOTARY PUBLIC-STATE OF NEW YORK

No. 01RO6333557

Qualified in Bronx County

My Commission Expires November 23, 2019

Index # 1154/16

Attorney(s):

Purchased/Filed: February 1, 2016

AFFIDAVIT OF SERVICE BY THE SECRETARY OF STATE

STATE OF NEW YORK

SUPREME COURT

KINGS COUNTY

JOSEPH KELLER

PLAINTIFF

AGAINST

THE CITY OF NEW YORK ET AL

DEFENDANT

STATE OF NEW YORK)
 COUNTY OF ALBANY) SS
 CITY OF ALBANY)

SEAN WARNER

BEING DULY SWORN, DEPOSES AND SAYS:

DEPONENT RESIDES IN THE CITY OF ALBANY, COUNTY OF ALBANY,
 STATE OF NEW YORK. THAT ON THE 10TH DAY OF FEBRUARY 2016, AT 11:35 AM
 AT THE OFFICE OF THE NY SECRETARY OF STATE, ONE COMMERCE PLAZA, ALBANY, NY,
 DEPONENT SERVED:

SUMMONS & VERIFIED COMPLAINT

UPON RASHID ROBINSON THE DEFENDANT IN THE ABOVE

CAPTIONED ACTION BY DELIVERING TO AND LEAVING WITH SUE ZOUKY

DESCRIPTION OF PERSON SERVED: APPROX. AGE: 55 Yrs. WEIGHT: 120 Lbs. HEIGHT: 5'

SEX: Female SKIN COLOR: White HAIR: Brown OTHER:

FILED

A COPY OF SAID

MAR 28 2016

SUMMONS & VERIFIED COMPLAINT

KINGS COUNTY CLERK'S OFFICE

AND THAT AT THE TIME OF MAKING SUCH SERVICE, DEPONENT PAID THE SECRETARY OF STATE
 THE SUM OF \$10.00, THAT BEING THE LAWFUL FEE OF THE SECRETARY OF STATE FOR ACCEPT-
 ING SUCH SERVICE: DEPONENT FURTHER SAYS THAT SUCH SERVICE WAS MADE PURSUANT TO
 SECTION 253 OF THE VEHICLE AND TRAFFIC LAWS OF THE STATE OF NEW YORK AND THAT THE
 SAID SUE ZOUKY WAS A DESIGNATED CLERK OF THE SECRETARY OF
 STATE AND PERSON AUTHORIZED BY LAW TO ACCEPT SERVICE IN SUCH CASES.

SWORN TO BEFORE ME ON THIS

10TH DAY OF FEBRUARY 2016

Faith Cozzy
 FAITH COZZY
 NOTARY PUBLIC, State of New York
 No. 01CO6158874, Albany County
 Commission Expires Jan 8, 2019

Sean Warner
 SEAN WARNER

Invoice-Work Order # 1602907

AFFIDAVIT OF MAILING

STATE OF NEW YORK

SUPREME COURT

KINGS COUNTY

Joseph Keller

Plaintiff(s)/Petitioner(s)

The City of New York et al

Defendant(s)/Respondent(s)

Index # 1154/16

Plaintiff(s)/Petitioner(s)

vs

Defendant(s)/Respondent(s)

Index #

STATE OF NEW YORK)
COUNTY OF ALBANY) SS
CITY OF ALBANY)SEAN WARNER

BEING DULY SWORN, DEPOSES

AND SAYS THAT DEPONENT IS OVER THE AGE OF 18 YEARS AND NOT A PARTY TO THIS ACTION.

THAT ON THE 19TH DAY OF FEBRUARY 2016, DEPONENT MAILED TO THE DEFENDANTRASHID ROBINSON

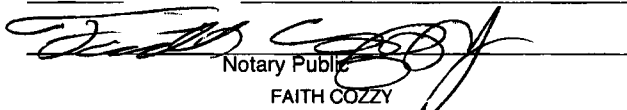
BY CERTIFIED MAIL, RETURN RECEIPT

REQUESTED, A COPY OF THE

SUMMONS & VERIFIED COMPLAINT

NOTICE OF SERVICE AND A COPY OF THE OFFICIAL RECEIPT OF THE DEPARTMENT OF STATE, OF
THE STATE OF NEW YORK. THAT THE SAID DOCUMENTS WERE ENCLOSED IN A PROPER POSTAGE
PAID ENVELOPE AND THAT THEY WERE DEPOSITED AT THE U. S. POST OFFICE IN THE CITY OF
ALBANY AND THAT THE DOCUMENT WAS ASSIGNED REGISTRY NUMBER7015 0640 0007 2643 4519

SWORN TO BEFORE ME ON THIS

19TH DAY OF FEBRUARY 2016
Notary Public
FAITH COZZY
NOTARY PUBLIC, State of New York
No. 01CO6158874, Albany County
Commission Expires Jan 8, 2019
SEAN WARNER

Invoice-Work Order # 60290

FILED

MAR 28 2016

KINGS COUNTY CLERK'S OFFICE

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index # 1154/2016

JOSEPH KELLER,

Plaintiff(s)

-against-

AFFIDVIT OF
COMPLIANCE WITH
VTL 253

THE CITY OF NEW YORK, ET AL.,

Defendant(s)

State of New York, County of Queens ss:

Party to be served: Rashid Robinson
133 W Windsor St.
Reading, PA 19601

I, Lisette Gallego, being duly sworn, depose and say that:

A copy of the Summons and Complaint has been sent/delivered to Secretary of State (as evidenced by the receipt from the Secretary of State attached) and notice of such service on the Secretary of State and a copy of the Summons and Complain were sent to the Defendant by Certified Mail

- ☐ as evidenced by the Return Receipt provided with this Affidavit.
- ☐ which was refused by said Defendant, as evidenced by the original envelope bearing a notation by the postal authorities that receipt was refused provided with this affidavit. I further state that notice of such mailing and refusal (a letter explaining what has occurred) was forthwith sent to the defendant by ordinary mail.
- ☐ which was unclaimed by said Defendant, as evidenced by the tracking information from the United State Postal Office website that it was unclaimed provided with this Affidavit. I further state that the Summons was posted again by ordinary mail as evidenced by the Proof of Mailing Certificate from the postal authorities provided with this affidavit.
- ☒ which was returned to sender, not deliverable as addressed, as evidenced by the original envelope bearing a notation by the postal authorities provided with this Affidavit. I further state that the Summons was posted again by ordinary mail as evidenced by the Proof of Mailing Certificate from the postal authorities provided with this affidavit.

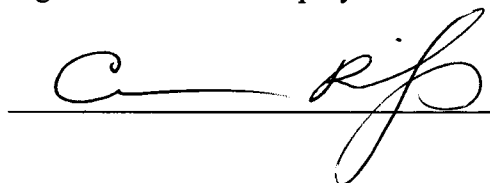
FILED
KINGS COUNTY CLERK
2016 MAR 28 PM 4:04Sworn to before me this 25 day of March 2016

Sign your name

Print Address

162-01 POWELLS COVE BLVD., WHITESTONE, NY 11357

Signature of Court Employee and Title or Notary Public

CAREN ROJAS
NOTARY PUBLIC-STATE OF NEW YORK
No. 01RO6333557
Qualified in Bronx County
My Commission Expires November 23, 2019



Certificate Of Mailing

This Certificate of Mailing provides evidence that mail has been presented to USPS® for mailing.
This form may be used for domestic and international mail.

From: PMI
162-01 POWELL'S COVE BLVD.
WHITESTONE, NY 11357

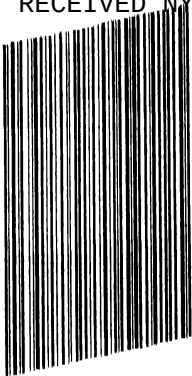
To: Rashid Robinson
133 N WINDSOR ST.
READING, PA 19601

PS Form 3817, April 2007 PSN 7530-02-000-9065

18056797.14

U.S. POSTAGE
PAID
LONG ISLAND CITY, NY
11101
MAR 24 18
AMOUNT
\$1.35
R2304E107402-18

PM Investigations Service
162-01 Powells Cove Blvd
Whitestone NY 11357



7015 0640 0007 2643 4519

Rashid Robinson
133 W Windsor St
Reading PA 19601



NIXIE 176 DE 1 0003/01/16

RETURN TO SENDER
NOT DELIVERABLE AS ADDRESSED
UNABLE TO FORWARD

19-0182060 0 SC: 11357144599 *1119-03977-01-02
1 10432000

DO NOT WRITE IN THESE SPACES
 (PLACE STICKER AT TOP OF ENVELOPE TO THE RIGHT)

SENDER: COMPLETE THIS SECTION

- Complete items 1, 2, and 3.
- Print your name and address on the reverse so that we can return the card to you.
- Attach this card to the back of the mailpiece, or on the front if space permits.

Rashid Robinson
 133 W Windsor St
 Reading PA 19601



9590 9402 0054 5168 9094 00

PS Form 3811, April 2015 PSN 7530-02-000-9053

7015 0640 0007 2643 4519

COMPLETE THIS SECTION ON DELIVERY

A. Signature

☐ Agent

☐ Addressee

B. Received by (Printed Name)

C. Date of Delivery

D. Is delivery address different from item 1? ☐ Yes

If YES, enter delivery address below: ☐ No

3. Service Type

☐ Priority Mail Express®

☐ Adult Signature

☐ Registered Mail™

☐ Adult Signature Restricted Delivery

☐ Registered Mail Restricted Delivery

☐ Certified Mail®

☐ Return Receipt for Merchandise

☐ Certified Mail Restricted Delivery

☐ Signature Confirmation™

☐ Collect on Delivery

☐ Signature Confirmation Restricted Delivery

☐ Collect on Delivery Restricted Delivery

☐ Insured Mail

☐ Insured Mail Restricted Delivery (over \$500)

Domestic Return Receipt

REQUEST FOR JUDICIAL INTERVENTION

UCS-840 (7/2012)

Supreme COURT, COUNTY OF Kings

Index No: 1154/2016 Date Index Issued: 02/01/2016

JOSEPH KELLER,

Plaintiff(s)/Petitioner(s)

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT
P.O. MICHAEL SALAS, RASHID ROBINSON and TYRONE DENNIS JOHNSON,

Defendant(s)/Respondent(s)

MATRIMONIAL

☐ Contested

NOTE: For all Matrimonial actions where the parties have children under the age of 18, complete and attach the **MATRIMONIAL RJJ Addendum**.
For Uncontested Matrimonial actions, use RJJ form UD-13.

TORTS

☐ Asbestos☐ Breast Implant☐ Environmental: _____ (specify)☐ Medical, Dental, or Podiatric Malpractice☒ Motor Vehicle☐ Products Liability: _____ (specify)☐ Other Negligence: _____ (specify)☐ Other Professional Malpractice: _____ (specify)☐ Other Tort: _____ (specify)

OTHER MATTERS

☐ Certificate of Incorporation/Dissolution [see NOTE under Commercial]☐ Emergency Medical Treatment☐ Habeas Corpus☐ Local Court Appeal☐ Mechanic's Lien☐ Name Change☐ Pistol Permit Revocation Hearing☐ Sale or Finance of Religious/Not-for-Profit Property☐ Other: _____ (specify)

COMMERCIAL

☐ Business Entity (including corporations, partnerships, LLCs, etc.)☐ Contract☐ Insurance (where insurer is a party, except arbitration)☐ UCC (including sales, negotiable instruments)☐ Other Commercial: _____ (specify)

NOTE: For Commercial Division assignment requests [22 NYCRR § 202.70(d)], complete and attach the **COMMERCIAL DIV RJJ Addendum**.

REAL PROPERTY: How many properties does the application include?

☐ Condemnation☐ Mortgage Foreclosure (specify): ☐ Residential ☐ CommercialProperty Address: _____
Street Address City State Zip

NOTE: For Mortgage Foreclosure actions involving a one- to four-family, owner-occupied, residential property, or an owner-occupied condominium, complete and attach the **FORECLOSURE RJJ Addendum**.

☐ Tax Certiorari - Section: _____ Block: _____ Lot: _____☐ Tax Foreclosure☐ Other Real Property: _____ (specify)

SPECIAL PROCEEDINGS

☐ CPLR Article 75 (Arbitration) [see NOTE under Commercial]☐ CPLR Article 78 (Body or Officer)☐ Election Law☐ MHL Article 9.60 (Kendra's Law)☐ MHL Article 10 (Sex Offender Confinement-Initial)☐ MHL Article 10 (Sex Offender Confinement-Review)☐ MHL Article 81 (Guardianship)☐ Other Mental Hygiene: _____ (specify)☐ Other Special Proceeding: _____ (specify)

STATUS OF ACTION OR PROCEEDING

Answer YES or NO to EVERY question AND enter additional information where indicated.

Has a summons and complaint or summons w/notice been filed?

☒ YES

If yes, date filed: 02/01/2016

Has a summons and complaint or summons w/notice been served?

☒ YES

If yes, date served: 02/19/2016

Is this action/proceeding being filed post-judgment?

☐ YES

If yes, judgment date: _____

- ☐ Infant's Compromise
☐ Note of Issue and/or Certificate of Readiness
☐ Notice of Medical, Dental, or Podiatric Malpractice Date Issue Joined: _____
☐ Notice of Motion Relief Sought: _____ Return Date: _____
☐ Notice of Petition Relief Sought: _____ Return Date: _____
☐ Order to Show Cause Relief Sought: _____ Return Date: _____
☐ Other Ex Parte Application Relief Sought: _____
☐ Poor Person Application
☒ Request for Preliminary Conference
☐ Residential Mortgage Foreclosure Settlement Conference
☐ Writ of Habeas Corpus
☐ Other (specify): _____

Case Title	Index/Case No.	Court	Judge (if assigned)	Relationship to Instant Case

Un-Rep	Parties:	Attorneys and/or Unrepresented Litigants:	Issue Joined (Y/N):	Insurance Carrier(s):
☐	KELLER Last Name JOSEPH First Name Primary Role: Plaintiff Secondary Role (if any):	Last Name First Name FIRM NAME 55 Broadway, Suite 1101 Street Address New York City New York State 10006 Zip Phone Fax e-mail	☒ YES ☐ NO	
☐	THE CITY OF NEW YORK Last Name First Name Primary Role: Defendant Secondary Role (if any):	Last Name First Name FIRM NAME 100 Church Street Street Address New York City New York State 10007 Zip Phone Fax e-mail	☒ YES ☐ NO	
☐	THE NEW YORK CITY POLICE DEPARTMENT Last Name First Name Primary Role: Defendant Secondary Role (if any):	Last Name First Name FIRM NAME 100 Church Street Street Address New York City New York State 10007 Zip Phone Fax e-mail	☒ YES ☐ NO	
☐	SALAS Last Name P.O. MICHAEL First Name Primary Role: Defendant Secondary Role (if any):	Last Name First Name FIRM NAME 100 Church Street Street Address New York City New York State 10007 Zip Phone Fax e-mail	☒ YES ☐ NO	

I AFFIRM UNDER THE PENALTY OF PERJURY THAT, TO MY KNOWLEDGE, OTHER THAN AS NOTED ABOVE, THERE ARE AND HAVE BEEN NO RELATED ACTIONS OR PROCEEDINGS, NOR HAS A REQUEST FOR JUDICIAL INTERVENTION PREVIOUSLY BEEN FILED IN THIS ACTION OR PROCEEDING.

Dated: 4/15/16

5056882

ATTORNEY REGISTRATION NUMBER



SIGNATURE

Stephen J. Liakas

PRINT OR TYPE NAME

Print Form

Request for Judicial Intervention Addendum

Supreme

Kings

COURT, COUNTY OF

Index No:

1154/2016

For use when additional space is needed to provide party or related case information.

PARTIES: For parties without an attorney, check "Un-Rep" box AND enter party address, phone number and e-mail address in "Attorneys" space.

Un-Rep	Parties:	Attorneys and/or Unrepresented Litigants:	Issue Joined (Y/N):	Insurance Carrier(s):
☒	ROBINSON Last Name RASHID First Name Primary Role: ☒ Defendant Secondary Role (if any):	Provide attorney name, firm name, business address, phone number and e-mail address of all attorneys that have appeared in the case. For unrepresented litigants, provide address, phone number and e-mail address. Last Name First Name 133 W Windsor Street Reading Pennsylvania ☒ 19601 Street Address City State Zip Phone Fax e-mail	☐ YES ☒ NO	
☒	JOHNSON Last Name TYRONE DENNIS First Name Primary Role: ☒ Defendant Secondary Role (if any):	Last Name First Name 133 W Windsor St Reading Pennsylvania ☒ 19601 Street Address City State Zip Phone Fax e-mail	☐ YES ☒ NO	
☐	Last Name First Name Primary Role: Secondary Role (if any):	Last Name First Name Firm Name Street Address City State Zip Phone Fax e-mail	☐ YES ☐ NO	
☐	Last Name First Name Primary Role: Secondary Role (if any):	Last Name First Name Firm Name Street Address City State Zip Phone Fax e-mail	☐ YES ☐ NO	
☐	Last Name First Name Primary Role: Secondary Role (if any):	Last Name First Name Firm Name Street Address City State Zip Phone Fax e-mail	☐ YES ☐ NO	
☐	Last Name First Name Primary Role: Secondary Role (if any):	Last Name First Name Firm Name Street Address City State Zip Phone Fax e-mail	☐ YES ☐ NO	

RELATED CASES: List any related actions. For Matrimonial actions, include any related criminal and/or Family Court cases.

Case Title	Index/Case No.	Court	Judge (if assigned)	Relationship to Instant Case

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: 1154/2016

-----X
JOSEPH KELLER,

Plaintiff,

-against-

**REQUEST FOR A
PRELIMINARY
CONFERENCE**

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. MICHAEL SALAS, RASHID ROBINSON
and TYRONE DENNIS JOHNSON,

Defendants.
-----X

The undersigned requests a Preliminary Conference.

The nature of the action is to recover money damages for personal injury due to Defendants' negligence.

The names, addresses and telephone numbers of the attorneys appearing herein are:

LIAKAS LAW, P.C.
Attorneys for Plaintiff
65 Broadway, Ste. 1101
New York, New York 10006
212-937-7765

ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendants
THE CITY OF NEW YORK, THE CITY OF NEW YORK
s/h/a THE NEW YORK CITY POLICE DEPARTMENT
and P.O. MICHAEL SALAS
100 Church Street
New York, New York 10007
718-724-5200

Annexed hereto is an affirmation of good faith pursuant to 22 NYCRR 202.12(a).

Dated: New York, New York
April 15, 2016

~~LIAKAS LAW, P.C.~~


Stephen J. Liakas, ESQ.
Attorneys for Plaintiff
65 Broadway, Ste. 1101
New York, New York 10006
212-937-7765

To: ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendants
THE CITY OF NEW YORK, THE CITY OF NEW YORK
s/h/a THE NEW YORK CITY POLICE DEPARTMENT and P.O. MICHAEL SALAS
100 Church Street
New York, New York 10007
718-724-5200

RASHID ROBINSON
133 W Windsor St
Reading, PA 19601

TYRONE DENNIS JOHNSON
133 W Windsor St
Reading, PA 19601

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: 1154/2016

-----X
JOSEPH KELLER,

Plaintiff,

**AFFIRMATION OF GOOD
FAITH**

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. MICHAEL SALAS, RASHID ROBINSON
and TYRONE DENNIS JOHNSON,

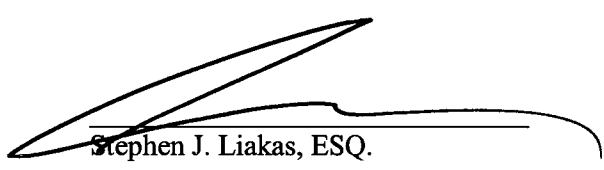
Defendants.
-----X

Stephen J. Liakas, an attorney admitted to practice in the State of New York, affirms the
following under the penalties of perjury:

- i) I am the attorney of record for Plaintiff, and as such am thoroughly conversant with the facts and circumstances herein based upon the contents of the file maintained by this office.
- ii) I make this affirmation in support of this Request for a Preliminary Conference. This is an action for personal injuries.
- iii) Prior to the making of this Request, your affirrant contacted Defendants in a good faith effort to resolve the issues raised by this Request, without the intervention of the Court, and have been unable to do so.

WHEREFORE, it is respectfully prayed that this request be granted in its entirety, and for such other and further relief as to this Court seems just and proper.

Dated: New York, New York
April 15, 2016


Stephen J. Liakas, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
JOSEPH KELLER,

Index No.: 1154/2016

Plaintiff,

**AFFIRMATION OF
SERVICE**

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. MICHAEL SALAS, RASHID ROBINSON
and TYRONE DENNIS JOHNSON,Defendants.
-----XSTATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

I, Stephen J. Liakas, ESQ., an attorney duly admitted to practice law in the State of New York, do affirm under the penalty of perjury: I am not a party to the action, am over 18 years of age and reside in Morris County, in the State of New Jersey.

On April 15, 2016, I served a **REQUEST FOR JUDICIAL INTERVENTION and REQUEST FOR A PRELIMINARY CONFERENCE with AFFIRMATION OF GOOD FAITH**, on Defendants by depositing true copies thereof enclosed in a post-paid wrapper, in an official depository under the exclusive care and custody of the U.S. Postal Service within New York State, via regular mail, addressed to the following:

ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendants

THE CITY OF NEW YORK, THE CITY OF NEW YORK
s/h/a THE NEW YORK CITY POLICE DEPARTMENT and P.O. MICHAEL SALAS
100 Church Street
New York, New York 10007
718-724-5200

RASHID ROBINSON
133 W Windsor St
Reading, PA 19601

TYRONE DENNIS JOHNSON
133 W Windsor St
Reading, PA 19601


Stephen J. Liakas, ESQ.

Index No.: 1154
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS
JOSEPH KELLER,

Year 2016

-Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, P.O. MICHAEL SALAS,
RASHID ROBINSON and TYRONE DENNIS JOHNSON,

Defendants.

**REQUEST FOR JUDICIAL INTERVENTION and REQUEST FOR PRELIMINARY
CONFERENCE with AFFIRMATION OF GOOD FAITH**

LIAKAS LAW, P.C.
Attorneys for Plaintiff
65 Broadway, Ste. 1101
New York, New York 10006
212-937-7765

To

Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

- ☐ *PLEASE TAKE NOTICE that the within is a true copy of an Order signed by
the Honorable
that was entered in the office of the clerk of the within named Court on*

NOTICE OF ENTRY

- ☐ *that an Order of which the within is a true copy will be presented for settlement to the
, one of the judges of the within named Court for signature*

on

Dated: New York, NY

NOTICE OF SETTLEMENT

This Certificate of Mailing provides evidence that mail has been presented to USF
This form may be used for domestic and international mail.

From:

PMI

162-01 POWELLS COVE BLV
WHITESTONE, NY 11357

To:

TYRONE DENNIS JOHNSON
133 W WINDSOR ST.
READING, PA 19601

U.S. POSTAGE
PAID
LONG ISLAND CITY, NY
11101
APR 15, 16
AMOUNT
\$1.30
R2304E107402-06

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index # 1154/2016

JOSEPH KELLER,

Plaintiff(s)

-against-

AFFIDVIT OF
COMPLIANCE WITH
VTL 253

THE CITY OF NEW YORK, ET AL.,

Defendant(s)

State of New York, County of Queens ss:

Party to be served: Tyrone Dennis Johnson
133 W Windsor St.
Reading, PA 19601

I, Lisette Gallego, being duly sworn, depose and say that:

A copy of the Summons and Complaint has been sent/delivered to Secretary of State (as evidenced by the receipt from the Secretary of State attached) and notice of such service on the Secretary of State and a copy of the Summons and Complain were sent to the Defendant by Certified Mail

- ☐ as evidenced by the Return Receipt provided with this Affidavit.
- ☐ which was refused by said Defendant, as evidenced by the original envelope bearing a notation by the postal authorities that receipt was refused provided with this affidavit. I further state that notice of such mailing and refusal (a letter explaining what has occurred) was forthwith sent to the defendant by ordinary mail.
- ☐ which was unclaimed by said Defendant, as evidenced by the tracking information from the United State Postal Office website that it was unclaimed provided with this Affidavit. I further state that the Summons was posted again by ordinary mail as evidenced by the Proof of Mailing Certificate from the postal authorities provided with this affidavit.
- ☒ which was returned to sender, not deliverable as addressed, as evidenced by the original envelope bearing a notation by the postal authorities provided with this Affidavit. I further state that the Summons was posted again by ordinary mail as evidenced by the Proof of Mailing Certificate from the postal authorities provided with this affidavit.

Sworn to before me this 15 day of April 2016Sign your name [Signature]

Print Address

162-01 Powells Cove Blvd., Whitestone, NY 11357

Signature of Court Employee and Title or Notary Public

[Signature]CAREN ROJAS
NOTARY PUBLIC-STATE OF NEW YORK
No. 01RO6333557
Qualified in Bronx County
My Commission Expires November 23, 2019

2016 APR 20 PM 2:58

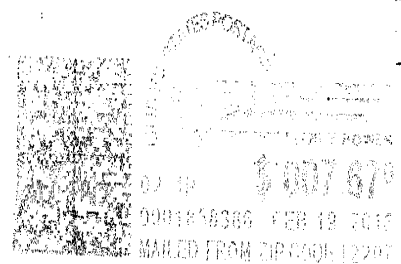
FILED
KINGS COUNTY CLERK
3/3

PM Investigations Service
162-01 Powells Cove Blvd
Whitestone NY 11357

RECEIVED NYSCEF: 11/05/2020



7015 0640 0007 2643 4526



Tyrone Dennis Johnson
133 W Windsor St
Reading PA 19601

~~CFS~~
UTF

DELIVERABLE
AS ADDRESSED
UNABLE TO FORWARD

UTF

FILED
COUNTY CLERK
2016 APR 20 PM 2:58



Certificate C

This Certificate of Mailing provides evidence that mail has been presented to USF
This form may be used for domestic and international mail.

From: PMI
162-01 Powells Cove Blvd
Whitestone, NY 11357

To: Tyrone Dennis Johnson
133 W Windsor St
Reading, PA 19601

U.S. POSTAGE
LONG ISLAND CITY, NY
APR 19 16
\$1.30
R2304E107402-06

Index # **1154/16**

Attorney(s):

Purchased/Filed: February 1, 2016

AFFIDAVIT OF SERVICE BY THE SECRETARY OF STATE

STATE OF NEW YORK

SUPREME COURT

KINGS COUNTY

JOSEPH KELLER

PLAINTIFF

AGAINST

THE CITY OF NEW YORK ET AL

DEFENDANT

STATE OF NEW YORK)
COUNTY OF ALBANY) SS
CITY OF ALBANY)

SEAN WARNER

BEING DULY SWORN, DEPOSES AND SAYS:

DEPONENT RESIDES IN THE CITY OF ALBANY, COUNTY OF ALBANY,
STATE OF NEW YORK. THAT ON THE 10TH DAY OF FEBRUARY 2016, AT 11:35 AM
AT THE OFFICE OF THE NY SECRETARY OF STATE, ONE COMMERCE PLAZA, ALBANY, NY,
DEPONENT SERVED:

SUMMONS & VERIFIED COMPLAINT

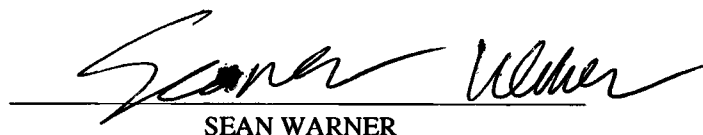
UPON TYRONE DENNIS JOHNSON THE DEFENDANT IN THE ABOVECAPTIONED ACTION BY DELIVERING TO AND LEAVING WITH SUE ZOUKYDESCRIPTION OF PERSON SERVED: APPROX. AGE: 55 Yrs. WEIGHT: 120 Lbs. HEIGHT: 5'8"SEX: Female SKIN COLOR: White HAIR: Brown OTHER:

A COPY OF SAID

SUMMONS & VERIFIED COMPLAINT

AND THAT AT THE TIME OF MAKING SUCH SERVICE, DEPONENT PAID THE SECRETARY OF STATE
THE SUM OF \$10.00, THAT BEING THE LAWFUL FEE OF THE SECRETARY OF STATE FOR ACCEPT-
ING SUCH SERVICE: DEPONENT FURTHER SAYS THAT SUCH SERVICE WAS MADE PURSUANT TO
SECTION 253 OF THE VEHICLE AND TRAFFIC LAWS OF THE STATE OF NEW YORK AND THAT THE
SAID SUE ZOUKY WAS A DESIGNATED CLERK OF THE SECRETARY OF
STATE AND PERSON AUTHORIZED BY LAW TO ACCEPT SERVICE IN SUCH CASES.

SWORN TO BEFORE ME ON THIS

10TH DAY OF FEBRUARY 2016
FAITH COZZINOTARY PUBLIC, State of New York
No. 01CO6158874, Albany County
Commission Expires Jan 8, 2019
SEAN WARNER

Invoice-Work Order # 1602908

AFFIDAVIT OF MAILING

STATE OF NEW YORK

SUPREME COURT

KINGS COUNTY

Joseph Keller

Plaintiff(s)/Petitioner(s)

The City of New York et al

Defendant(s)/Respondent(s)

Index # 1154/16

Plaintiff(s)/Petitioner(s)

vs

Defendant(s)/Respondent(s)

Index #

STATE OF NEW YORK)
COUNTY OF ALBANY) SS
CITY OF ALBANY)

SEAN WARNER

BEING DULY SWORN, DEPOSES

AND SAYS THAT DEPONENT IS OVER THE AGE OF 18 YEARS AND NOT A PARTY TO THIS ACTION.

THAT ON THE 19TH DAY OF FEBRUARY 2016, DEPONENT MAILED TO THE DEFENDANT

TYRONE DENNIS JOHNSON

BY CERTIFIED MAIL, RETURN RECEIPT

REQUESTED, A COPY OF THE

SUMMONS & VERIFIED COMPLAINT

NOTICE OF SERVICE AND A COPY OF THE OFFICIAL RECEIPT OF THE DEPARTMENT OF STATE, OF
THE STATE OF NEW YORK. THAT THE SAID DOCUMENTS WERE ENCLOSED IN A PROPER POSTAGE
PAID ENVELOPE AND THAT THEY WERE DEPOSITED AT THE U. S. POST OFFICE IN THE CITY OF
ALBANY AND THAT THE DOCUMENT WAS ASSIGNED REGISTRY NUMBER

7015 0640 0007 2643 4526

SWORN TO BEFORE ME ON THIS

19TH DAY OF FEBRUARY 2016



Notary Public

FAITH COZZY

NOTARY PUBLIC, State of New York
No. 01CO6158874, Albany County
Commission Expires Jan 8, 2019

SEAN WARNER

Invoice-Work Order # 1602908

2016 APR 20 PM 2:59

FILED
KINGS COUNTY CLERK

16-PG-264 JPC

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JOSEPH KELLER,

Index No. 1154/2016

Plaintiff,

-against-

**NOTICE OF
APPEARANCE**

THE CITY OF NEW YORK, THE NEW YORK
CITY POLICE DEPARTMENT, P. O. MICHAEL
SALAS, RASHID ROBINSON and TYRONE
DENNIS JOHNSON,

Defendants.

-----X

C O U N S E L O R S :

PLEASE TAKE NOTICE that defendants, RASHID ROBINSON and TYRONE DENNIS
JOHNSON, hereby appear in the above entitled action, and that the undersigned have been retained
as attorneys for said defendants. Please forward all future correspondence, pleadings, etc. to the
undersigned.

Dated: Carle Place, New York
May 23, 2016

Yours, etc.

McCABE, COLLINS, McGEOUGH, FOWLER,
LEVINE & NOGAN, LLP

By: _____

John J. Connelly

Attorneys for Defendants ROBINSON and JOHNSON
346 Westbury Avenue
P.O. Box 9000
Carle Place, New York 11514-9000
516-741-6266
File No.: 16-PGF-264 JPC

FILED
KINGS COUNTY CLERK
2016 JUN -1 AM 7:14

TO: LIAKAS LAW, P.C.
Attorneys for Plaintiff
65 Broadway - Suite 1101
New York, New York 10006
212-937-7765

CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
53-15 58th Street
Woodside, New York 11277

P.O. MICHAEL SALAS
c/o NYPD
53-15 58th Street
Woodside, New York 11277

AFFIDAVIT OF MAILING

STATE OF NEW YORK)

) ss.:

COUNTY OF NASSAU)

JOAN ROUMPAS, being duly sworn, deposes and says:

Deponent is not a party to this action, is over 18 years of age and resides at N. Massapequa, New York.

That on the 24th day of May, 2016, deponent served the within **NOTICE OF APPEARANCE** upon:

LIAKAS LAW, P.C.
65 Broadway - Suite 1101
New York, New York 10006

CITY OF NEW YORK
100 Church Street
New York, New York 10007

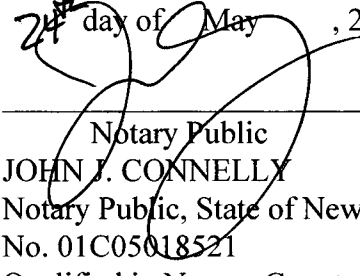
NEW YORK CITY POLICE DEPARTMENT
53-15 58th Street
Woodside, New York 11277

P.O. MICHAEL SALAS
c/o NYPD
53-15 58th Street
Woodside, New York 11277

the address designated by said attorney for that purpose by depositing a true copy of same enclosed in a postpaid properly addressed wrapper, in an official depository under the exclusive care and custody of the United States Post Office Department within the State of New York.


JOAN ROUMPAS

Sworn to before me this
24th day of May, 2016



Notary Public
JOHN J. CONNELLY
Notary Public, State of New York
No. 01C05018521
Qualified in Nassau County
Commission Expires September 27, 2017

Index No. 1154/16

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**

JOSEPH KELLER,

Plaintiff(s)

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,
P.O. MICHAEL SALAS, RASHID ROBINSON and TYRONE DENNIS JOHNSON,*Defendant(s)***NOTICE OF APPEARANCE****MCCABE COLLINS, MCGEOUGH, FOWLER, LEVINE & NOGAN, LLP.***Attorneys for Defendants ROBINSON and JOHNSON**Office and Post Office Address, Telephone***346 WESTBURY AVENUE****PO BOX 9000****CARLE PLACE, NEW YORK 11514****(516) 741-6266**

To

Attorney(s) for

Service of a copy of the within

is hereby admitted.

Dated:

Attorney(s) for

Sirs:

PLEASE TAKE NOTICE

- ☐ NOTICE OF ENTRY that the within is a (certified) true copy of a _____ duly entered in the office of the Clerk of the within named court on _____
- ☐ NOTICE OF SETTLEMENT that an Order of which the within is a true copy of will be presented for settlement to the HON. _____, one of the judges of the within named court at _____ on _____ at _____

Dated:

Yours, etc.,

To:

**MCCABE COLLINS, MCGEOUGH, FOWLER,
LEVINE & NOGAN, LLP***Attorneys for Defendants ROBINSON and JOHNSON**Office and Post Office Address, Telephone***346 WESTBURY AVENUE****P.O. BOX 9000****CARLE PLACE, NEW YORK 11514****(516) 741-6266**

KINGS COUNTY

PRELIMINARY CONFERENCE ORDER

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

HON. MARTIN SCHNEIER, JHO-----X

Joseph Keller,

Plaintiff(s),

- against -

The City of New York,
NYPD, PO Michael
Salas, Rashid Robinson and
Tyronne Dennis Johnson,

Defendant(s).

Index No.: 1154/16

Prelim. Conf. Date: 6/20/16

Comp. Conf. Date: 01/10/17

Note of Issue Date: 02/22/17

Justice: GENOVESE

IAS Part 7#17

City File: 2016-004223

I. Insurance Coverage:

- (a) Defendant City of New York and/or other defendants represented by Corporation Counsel, if any, is/are ☒ self-insured. ☐ covered by an insurance policy.
- (b) Defendant(s) _____, if not already provided, to furnish to all parties, including, evidence of excess coverage and Certificate of Insurance, within 30 days.

II. Bill of Particulars:

- (a) A verified bill of particulars shall be served by TT within 60 days.
- (b) A supplemental bill of particulars shall be served by TT as to item(s) #6-7 (Special damages) within 60 days after TT EBT.
- (c) Defendant _____ to provide a verified bill of particulars as to affirmative defenses within 60 days.

III. Medical Reports and Authorizations:

- (a) Plaintiff(s) shall provide authorizations to obtain copies of the actual records of all treating and examining health care providers, including diagnostic tests, x-rays, MRIs, EMGs, CT Scans, for injuries specified in the bill of particulars, within 90 days.
- (b) Plaintiff(s) shall provide an authorization for collateral source information, if any, within 90 days.

-TT to provide fresh HIPAA-compliant
A2S w/in 60 days after
filing NOI.

ACR, SSI/SSD records,
medicare/medicaid
lien info, to extent
applicable.

- (c) If, plaintiff is claiming a loss of income or wages, authorizations for W2 forms, and/or IRS records, and/or employment records shall be provided for the year of, year before and year after the date of the alleged accident, as well as authorizations for the period of time lost from work as a result of the alleged accident, within 90 days.
- (d) If, plaintiff was a student at the time of the alleged accident, plaintiff shall provide an authorization for school attendance records for the period of time lost from school as a result of the alleged accident, within 90 days.

IV. **Physical Examination:**

- (a) A physical examination of the plaintiff shall be scheduled within 60 days after completion of plaintiff's examination before trial.
- (b) A copy of the physician's report shall be furnished to plaintiff(s) within 60 days after the examination.
- (c) Defendant(s)' right to a further physical is reserved as to any new injuries claimed in any supplemental bill of particulars served by plaintiff(s).

V. **Depositions:** (check applicable box)

- (a) The depositions of the following parties shall take place on 10/12/16 at 10⁰⁰ a.m./p.m. at the following location:
350 Jay St., 8th Floor, BK, NY 11201.
☒ All parties
Plaintiff(s), _____
Waived by _____ as to _____.
- (b) Defendant(s)' right to seek a further deposition of plaintiff(s) is reserved as to any new injuries or damages claimed in any supplemental bill of particulars served by plaintiff(s) following the plaintiff's deposition.

VI. **Other Disclosure:**

- (a) All parties shall provide the names and addresses of any witnesses to the occurrence and notice witnesses (including plaintiff); accident reports; party statements; photographs taken in the ordinary course of business, and/or to be presented at trial, within 90 days.
- (b) All parties shall supply expert witness disclosure pursuant to the CPLR.
- (c) The City of New York and/or other defendants represented by Corporation Counsel, if any, shall provide the following information to all parties within 90 days after the date of this order, subject to the date and location specified in the notice of claim (check if applicable):

1. Premises Liability Cases:

- i. Departmental accident/incident report from respective City agency;
- ii. For non-transitory conditions, maintenance and repair records and written complaints regarding the condition complained of for _____ year(s) prior to and including the date of occurrence.
- iii. For transitory conditions, maintenance and written complaints regarding the condition complained of for 1 month prior to and including the date of the occurrence.

viii Other documents:

7. Inmate assault cases (Department of Correction (DOC):

- i. Department of Correction incident report, subject to redaction of privileged information including any information regarding criminal acts of other inmates and/or personal information regarding DOC employees;
- ii. Injury to inmate report (within 90 days after receipt of an authorization from plaintiff).

Other Documents:

✓ 8. Motor vehicle accidents involving City-owned vehicles:

- i. Departmental Accident Report from respective City agency.
- ii. Maintenance and repair records for the department vehicle involved for 1 year prior to and including the date of the occurrence, if a vehicular defect is alleged in either the departmental accident report or the MV-104.

iii. If checked ☒ ^{C.A.V.} photos and /or repair records of damage to all vehicles shall be exchanged by all parties within 90 days

iv. 911 sprint printout for 12:00 pm to 2:00 pm on 2/4/15 for the location of St. Marks Ave + Ralph Ave to be exchanged within 90 days.

9. Board of Education Cases:

- i. Board of Education Comprehensive Accident Report for the occurrence, subject to redaction of privileged information pursuant to the Family Education and Privacy Act, U.S. Code Ann., Title 20, Ch. 31.
- ii. Witness statements subject to redaction of privileged information pursuant to the Family Education and Privacy Act, U.S. Code Ann., Title 20, Ch. 31.
- iii. For non-transitory conditions, maintenance and repair records, written complaints and to the extent applicable, related contracts for the situs of plaintiff's accident, regarding the condition complained of for 1 year prior to and including the date of occurrence.

iv. For transitory conditions, maintenance and written complaints regarding the condition complained of for 1 month prior to and including the date of the occurrence.

(d) Surveillance videos to be provided in accordance with CPLR 3101(i)

(e) Any party who wishes to obtain prior notices of claim, pursuant to GML § 50-g, may do so by contacting LEE McNEIL (212) 669-4329 to set up an appointment to search the index maintained at 1 Centre Street, New York, New York.

(f) Any party who wishes to obtain a MV-104, be advised that the New York City Police Department no longer maintains MV-104s beyond 30 days for accidents occurring after April 15, 1995.

(g) All searches shall be conducted based upon the date and location as described in the notice of claim.

ALL PARTIES ARE REQUIRED PRIOR TO THIS CONFERENCE TO REVIEW ALL OUTSTANDING DISCOVERY DEMANDS SERVED UPON ANOTHER PARTY. IT IS THE INTENT OF THIS PRELIMINARY CONFERENCE TO RULE UPON ALL OF THESE OPEN DISCOVERY DEMANDS. PURSUANT TO UNIFORM RULES SECTION 202.12 (C) & (D), THIS ORDER REPRESENTS THE COURT'S RULING UPON ANY OUTSTANDING DISCOVERY DEMANDS PREVIOUSLY SERVED UPON A PARTY OTHER THAN THOSE ITEMS SPECIFICALLY EXCEPTED. THIS ORDER DOES NOT PRECLUDE ANY PARTY FROM SERVING POST-CONFERENCE DISCOVERY DEMANDS OR MAKING ANY MOTION PURSUANT TO THE CPLR.

VII. Co-defendant(s) and/or third-party(ies) to provide the following to all parties:

[Handwritten signature]

VIII. Third-party actions/Impleader

~~1. None~~

~~2. Already Commenced~~

3. Shall be completed within 90 days after completion of all parties' depositions.

IX. Compliance Conference:

A party seeking compliance with this order should contact the court to schedule a compliance conference prior to the service of a discovery motion.

X. Note of Issue Date:

A note of issue may be filed in accordance with the rules of the Supreme Court, Kings County.

X4

45 of 57

KINGS COUNTY CLERK
FILED

2017 JAN 30 AM 9:01

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 17 day of January 2017

P R E S E N T

Hon.

Buddie by Schweiber

Justice

HON. MARTIN SCHNEIER, JHO

2016-004223

Joseph Keller

Plaintiff(s)

Cal. No. 35

Index No. ~~1154~~ 1154/2016

- against -

City of NY, et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

- ① TI to provide courtesy copy of P.O. Salas' EBT transcript to 350 Jay St., 8th fl, BK, NY 11201. w/in 45 days.
- ② TI reserves right to demand to further City EBT.
- ③ EBT of ~~da~~ Rashid Robinson on 4/14/17, time/location TBD.
- ④ Further CC: 5/23/17

For Clerks use only

MG

MD

Motion Seq. #

⑤ NOI extended to: 7/28/17

EJV-rev 11-04

⑥ City to respond to TI's demand dated 12/29/16 w/in 30 days.

ENTER

J.S.C.

HON. MARTIN SCHNEIER, JHO

*Liak's Law**510 fern WC*
4 City/Salas 57

R2

2016-004223

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 23 day of May 2017

P R E S E N T

Hon.

HON. MARTIN SCHNEIER, Justice

Joseph Keller

Plaintiff(s)

Cal. No. 30

Index No. 001154/2016

- against -

The City of New York, NYPD, P.O.

Michael Salas, Rashid Robinson

and Tyrone Johnson

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

CC resolved as follows:

- 1) Further Plaintiff EBT (re: injuries + surgery from sup BP) scheduled for 9/11/17 at 350 Jay St.
- 2) CO-Ds Rashid Robinson EBT on for 7/27/17 (as prev. scheduled) Tyrone Johnson
- 3) Defendants Robinson and Johnson to respond to plaintiff's ~~letter~~ dated 4/27/17 within 45 days. (demands per letter)

For Clerks use only

MG

MD

Motion Seq. #

EJV-rev 11-04

- 4) After oral argument and over City's objection, City to respond to Plaintiff's post EBT demands dated 12/29/16 within 60 days.
(and compliance conf. order reiterating the

same)
dated 11/11/17 + ~~it's~~ good-faith letter dated 4/27/2017, all within 60 days.

J.S.C.

HON. MARTIN SCHNEIER.

5) further 6/12/17
6) further NOI
1/26/18

Liakas Law, PC
Atty for P
BY: Nicholas Giannopoulos

AS Robinson/Johnson

2016-004223 RZ

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 5 day of DEC 2017

P R E S E N T :

Hon. ~~Boddie~~ MARTIN SCHNEIER
HON. MARTIN SCHNEIER, JHO

Joseph Keller

Plaintiff(s)

Cal. No. 29

Index No. 001154/16

- against -

THE CITY of NY, NYPD, P.O. Michael Salas,
Rashid Robinson and TYRONE JOHNSON
Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

① EBT of ~~the~~ Δ Rashid Robinson and Δ Tyrone Johnson to be held on 2/27/18 at 350 Jay Street, 8th Floor, Brooklyn NY 11201 at 10:00am.

② City to respond to plaintiff's post EBT demands dated 12/29/16 within 60 days as per the 1/17/17 CC order.

For Clerks use only

MG

MD

Motion Seq. #

③ ~~the~~ Δ non-city Δ 's to provide umbrella/excess insurance information or if none exists and affidavit to that effect. within 45 days

E N T E R

HON. MARTIN SCHNEIER, JHO

EJV-rev 11-04

④ plaintiff to respond to Δ Rashid Robinson and Δ Tyrone Johnson's D&I dated 11/7/17 within 45 days.

⑤ Further CC: 5/22/18

④ ~~4~~ 6 Extended to: 2/20/18

Amey
City of NY
Michael Salas
Garces Law PC

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 22 day of May 2018

P R E S E N T :

Hon.

Martin Schneider

Justice

HON. MARTIN SCHNEIER, JHO

2016-004223

Joseph Keller

Plaintiff(s)

Cal. No. 23

Index No. 1154/16

- against -

City of NY et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

Today's CC is resolved as follows:

- ① EBT of Δ Robinson to be held 7/24/18 at 350 Jay St, 8th fl, Brooklyn NY 11201.
- ② TT reserves their Right to Conduct EBT of Δ Tyrone Robinson.
- ③ Non-City Δs to provide all applicable insurance coverage, including excess/umbrella, or if none in affidavit stating so within 30 days, to ~~extend not~~

For Clerks use only

MG

MD

Motion Seq. #

ENTER

④ City provided

Response to TT's

⑤ Post EBT demands at the Conference.

⑥ Further CC 11/29/19 ⑦ NOI 3/29/19

EAV-rev 11-04

HON. MARTIN SCHNEIER, JHO

Liaw Law - Atty for TT

KINGS COUNTY CLERK
FILED

2018 OCT 16 AM 11:27

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

RASHID KELLER,

Plaintiff,

- against -

NOTICE OF MOTION

Index No: 1154/2016

City File No.: 2016 - 004223

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. MICHAEL SALAS,
RASHID ROBINSON and TYRONE DENNIS

Defendant(s).

PLEASE TAKE NOTICE, that upon the affirmation of BRIAN C. BROWN, dated, 10/11/2018, 2018, and upon all the pleadings and proceedings heretofore had herein, between THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT and OFFICER MICHAEL SALAS will move this Court, at the courthouse located at 100 Court Street, Brooklyn, New York 11201 on October 17, 2018, at 9:30 a.m. of that day, or thereafter as counsel can be heard:

For an Order pursuant to CPLR 3124 compelling Defendants RASHID ROBINSON and TYRONE DENNIS JOHNSON to appear for an examination before trial;

Or, in the alternative, precluding Defendants RASHID ROBINSON and TYRONE DENNIS JOHNSON from offering testimony at trial concerning liability pursuant to CPLR 3126; and

For such further relief as this Court deems just and proper.

SUPREME COURT
MOTION SUPPORT
APPROVED
DATECOUNTY CLERK-KINGS COUNTY
FEE EXEMPT PURSUANT
TO CPLR 8019-D



ZACHARY W. CARTER
Corporation Counsel

The City of New York
LAW DEPARTMENT
RENAISSANCE PLAZA
TORT DIVISION
KINGS COUNTY OFFICE
350 JAY STREET - 8th Floor
BROOKLYN, N.Y. 11201-2908

TEL: (718) 222-2000
FAX: (718) 222-2088

September 21, 2018

Supreme Court of the State of New York
County of Kings

Re: JOSEPH KELLER v. THE CITY OF NEW YORK et al.

Index No.: 1154/2016
City File No.: ~~2016 - 20422~~ 3

County Clerk:

Please file this Notice of Motion in this matter. As the City of New York is the defendant requesting this, we are exempt from payment of fees for this motion under CPLR 8019(d).

Sincerely,

A handwritten signature in black ink, appearing to be "ZC", written over a horizontal line.

ZACHARY W. CARTER
Corporation Counsel
Attorney for Defendant
350 Jay Street, 8th Floor
Brooklyn, New York 11201
By: SAMANTHA JOSHUA

RZ

16-004223

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 29 day of January 2019

Hon. Lizette Colon

P R E S E N T :

Hon.

Boddie

Justice

Joe keller

Plaintiff(s)

Cal. No. 31

Index No. 1154/16

- against -

The City of New York et al

Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

KINGS COUNTY CLERK
FILED
2019 FEB -4 AM 8:25

Today's cc is resolved as follows:

1) Further EBT of Plaintiff to be held 4/1/19 at 10AM at 350 Jay St. EBT limited to new injuries alleged in Plaintiff's Supp BP dated 11/13/18.

2) Δ's reserve right to further IME of Plaintiff

For Clerks use only

MG

MD

Motion Seq. #

3) ~~NOT~~ CC: 9/10/194) ~~CC~~ NOI: 10/11/19

J.S.C.

Hon. Lizette Colon

EJV-rev 11-04

Joseph Keller
Lizette Colon P.C.

Δ City
Δ City

2016-004223

At an I.A.S. Trial Term, Part 7 of the Supreme Court of the State of New York, held in and for the County of Kings, at the Courthouse, located at Civic Center, Borough of Brooklyn, City and State of New York, on the 10 day of September 2019

PRESENT:
Hon. Lizette Colon

Justice

Joseph Keller

Plaintiff(s)

Cal. No. 23

Index No. 601154/2016

- against -

City of New York, et al. Defendant(s)

The following papers numbered 1 to read on this motion

Papers Numbered

Notice of Motion - Order to Show Cause

and Affidavits (Affirmations) Annexed

Answering Affidavit (Affirmation)

Reply Affidavit (Affirmation)

Affidavit (Affirmation)

Pleadings - Exhibits

Stipulations - Minutes

Filed Papers

1) City to notice further IME of Plaintiff Joseph Keller on or before 11/9/2019.

NOI 2/28/20

2) TT to respond to O Robinson / Johnson's Asst-EST demands dated 7/22/19 by 10/30/19

3) ~~Further CC on~~

For Clerks use only

MG

MD

Motion Seq. #

EJV-rev 11-04

ENTER

Hon. Lizette Colon J.S.C.

J.S.C.

2019 SEP 13 AM 8:32

KINGS COUNTY CLERK
FILED

Lizette Colon
by Joseph Keller

by Robinson / Johnson

by GP

For use of Clerk

:
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:
:
:.....SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: 1154/2016

=====X
JOSEPH KELLER,

Plaintiff,

-against-

NOTE OF ISSUETHE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. MICHAEL SALAS,
RASHID ROBINSON and TYRONE DENNIS JOHNSON,Defendants.
=====XJURY
JAN - 8 2020
APPROVED *Chia*
TO BE FILED ON OR BEFORE
1/10/2020**NOTICE FOR TRIAL**☒ Jury trial demanded☒ Of all issues☐ Of issues specified below or attached hereto☐ Trial without jury

Filed by Attorney for the Plaintiffs

Date Summons served – February 01, 2016

Date service completed – February 19, 2016

Date issue joined – May 23, 2016

NATURE OF ACTION OR SPECIAL PROCEEDING☒ Tort☒ Motor vehicle negligence☐ Medical malpractice☐ Other tort☐ Contract☐ Contested matrimonial☐ Uncontested matrimonial☐ Tax certiorari☐ Condemnation☐ Other (not itemized above)☐ This action is brought as a class action☐ This is a medical malpractice action: panel procedures prescribed by the court rules pursuant
to Judiciary Law section 148-a ____ have been completed ____ have not been completed

For use of Clerk

:
:
:
:
:
:
:.....SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.: 1154/2016

=====X
JOSEPH KELLER,

Plaintiff,

-against-

NOTE OF ISSUE

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, P.O. MICHAEL SALAS,
RASHID ROBINSON and TYRONE DENNIS JOHNSON,Defendants.
=====XJURY
JAN - 8 2020
APPROVED *Chia*
TO BE FILED ON OR BEFORE
1/10/2020

NOTICE FOR TRIAL

☒ Jury trial demanded☒ Of all issues☐ Of issues specified below or attached hereto☐ Trial without jury

Filed by Attorney for the Plaintiffs

Date Summons served – February 01, 2016

Date service completed – February 19, 2016

Date issue joined – May 23, 2016

NATURE OF ACTION OR SPECIAL PROCEEDING

☒ Tort☒ Motor vehicle negligence☐ Medical malpractice☐ Other tort☐ Contract☐ Contested matrimonial☐ Uncontested matrimonial☐ Tax certiorari☐ Condemnation☐ Other (not itemized above)☐ This action is brought as a class action☐ This is a medical malpractice action: panel procedures prescribed by the court rules pursuant
to Judiciary Law section 148-a ____ have been completed ____ have not been completed

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
JOSEPH KELLER

Plaintiff(s)/Petitioner(s),

Index No. 0001154/2016

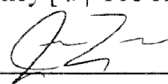
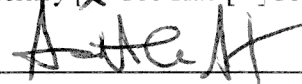
- against -

CITY OF NEW YORK, ET AL.

STIPULATION AND
CONSENT TO E-FILINGDefendant/Respondent(s).
-----X

We the undersigned, counsel in good standing representing parties in this matter, counsel admitted pro hac vice, and/or a self-represented party in this matter, hereby stipulate and consent to the use of the New York State Courts Electronic Filing System ("NYSCEF") in this matter. We agree to be bound by the rules governing the NYSCEF System (Section 202.5-b of the Uniform Rules for the Trial Courts) and the procedures of the NYSCEF system as reflected in the *User's Manual* approved by the Chief Administrator of the Courts and posted on the NYSCEF website.

Any of the undersigned who indicate below that they are not currently an authorized e-filing user in the NYSCEF System understand that they must first obtain a user ID and password before they may file any documents with NYSCEF and that they may do so by accessing the Create an Account button on the NYSCEF Login screen (<https://iapps.courts.state.ny.us/nyscef/Login>). They also understand that once they receive their credentials, their primary e-mail addresses, listed below, will be used for service of documents.

Dated: 10/29/20Registered User: [☒] Yes [☐] No
Attorney [☒] Pro Hac [☐] Pro Se [☐]Registered User: [☒] Yes [☐] No
Attorney [☒] Pro Hac [☐] Pro Se [☐] Signature SignatureJ. SEBASTIAN RESTREPO Print NameScott A. Steinberg Print NameCity of New York, Michael SalasJoseph Keller

Attorney for (Identity of Parties)

Attorney for (Identity of Parties)

56534724031969UCS Attorney Registration #
James E. Johnson Firm NameUCS Attorney Registration #
Liakas Law, PC Firm Name350 Jay Street, 8th Floor Address65 Broadway, Suite 1101 AddressBrooklyn, NY 11201New York, NY 10006718 - 834 -4174 Phone #212 - 937- 7765 Phone #jrestrep@law.nyc.gov E-Mail
(Primary)ssteinberg@liakaslaw.com E-Mail
(Primary)ECF@law.nyc.gov 2d E-MailAD@Liakaslaw.com 2d E-Mail

(Optional)

(Optional)

(Optional) 3d E-Mail DL@LukasLaw.com 3d E-Mail
(Optional) (Optional)

Registered User: ☐ Yes ☐ No
Attorney ☐ Pro Hac ☐ Pro Se ☐

Registered User: ☐ Yes ☐ No
Attorney ☐ Pro Hac ☐ Pro Se ☐

John J. Connelly Signature _____ Signature
JOHN J. CONNELLY Print Name _____ Print Name

Attorney for (Identity of Parties)

Attorney for (Identity of Parties)

2723450
UCS Attorney Registration #
McCabe, Collins, McGeough Firm Name _____ Firm Name
346 Westbury Ave., PO Box 9000 Address _____ Address
Carle Place, NY 11514
516 - 741 - 6266 Phone # _____ Phone #
JCONNELLY@MCMFLAW.COM E-Mail _____ E-Mail
(Primary) (Primary)
CALENDAR@MCMFLAW.COM 2d E-Mail _____ 2d E-Mail
(Optional) (Optional)
JTROUMPAS@MCMFLAW.COM 3d E-Mail _____ 3d E-Mail
(Optional) (Optional)

6/5/13